

Digest of Principles

Claude Opus-authored JSON summaries only. Every cross-cutting doctrine tagged in those records, classified by subject. · 9 September 2026

154 PRINCIPLES	170 CASE-APPLICATIONS	68 TAGGED CASES	68 CASES IN CORPUS	0 LEADING (10+ CASES)	17 SUBJECT CLASSES
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Drawn from the **principle_tags** field of JSON summaries whose **model** matches **Claude Opus** (records in this cut: Claude Opus 4.8 (68)). Grok, stencil, and unstamped records are excluded. Each principle is filed once, under the subject that best describes it. A principle applied in ten or more cases is marked leading. Where a principle has more than ten case-applications, the card names ten (significant cases first) and records the remainder as *N more*. Within each class, principles are ordered by the number of case-applications, then alphabetically. Empty subject classes are omitted. An A–Z index is at the end. Significant cases are cited as **SCJ_NNNN_S**.

 Leading — 10 or more cases  Extensive — 5 to 9 cases  Recurring — 2 to 4 cases  Isolated — a single case

How to read a card: the title is the kebab-case tag, rendered in prose. The paragraph is the richest *application* recorded for that tag. Chips are the named cases that carry it, with year and court. A green chip is a *significant* decision.

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A. Statutory architecture, vires & interpretation 2 principles · 2 case-applications

How the Code is read against the Act: hierarchy, retrospectivity, headings, and ultra vires.

A-01 Interim protection pending vires challenge to supply code amendment 1 case

Till the next date of listing, no further action was permitted on the notice dated 28 July 2021 issued under the impugned Thirteenth Amendment, and the protection was extended on successive dates while the bunch challenge remained undecided.

SCJ_2205 · M.R Proview Realtech Private Limited 2021 

A-02 Supply code regulation cannot exceed parent act s.174 overriding 1 case

The petitioner challenges clause 4.9 of the Supply Code (Thirteenth Amendment), 2018 as ultra vires the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005 — i.e., subordinate legislation exceeding its parent Act; interim protection was granted pending the bunch, the vires question being left for decision.

SCJ_2205 · M.R Proview Realtech Private Limited 2021 

B. Duty to supply & access to a connection 3 principles · 4 case-applications

Section 43, occupier and tenant connections, indemnity bonds, and mandamus to connect.

B-01 Clause 4.4 occupant connection on indemnity bond 2 cases

The petitioners, occupiers holding a connection on the indemnity bond prescribed by Annexure 4.2 (r/w Clause 4.4), contended that they could not be disconnected for failing to produce title; the Division Bench found the contention prima facie to have substance and granted interim protection.

LEAD AUTHORITIES *Sameera Khan v. U.P. Power Corporation Ltd., Lucknow*

SCJ_2203 · Sumitra Verma 2023 **All HC**

SCJ_2202 · Mukesh Kumar Mittal & 3 Others 2019 **All HC**

B-02 Clause 4.1 fourth proviso bar on new connection for premises with outstanding dues 1 case

The respondent-Department urged the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005 as barring a fresh connection for a premises against which dues are outstanding in the name of the existing connection holder; the contention was recorded but left undecided.

SCJ_1986 · Vishun Kumar Agrawal & Anr. 2023 **All HC**

B-03 Direction to consider connection on furnishing 4.4 or annexure 4.2 documents 1 case

The writ was disposed of not by compelling a connection but by directing that, on the applicant submitting the Clause 4.4 ownership documents or an Annexure 4.2 indemnity bond within two weeks, the Executive Engineer decide the application within two weeks thereafter.

SCJ_2203 · Sumitra Verma 2023 **All HC**

C. Arrears, transferee & occupier liability 9 principles · 11 case-applications

Who pays predecessor dues: premises charge, auction purchasers, landlords and directors.

C-01 Arrears follow premises not person fresh connection vs transfer 2 cases

Past dues are not a charge on premises and cannot be foisted on a mere transferee, but a distributor may stipulate clearance of arrears as a condition of a fresh connection or load enhancement to the same premises.

LEAD AUTHORITIES *Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.*

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

SCJ_2211 · M.P. Singh Foundation 2023 **All HC**

C-02 Arrears run with the premises 2 cases

Under the amended Clause 4.3(f)(i), clearing the outstanding dues on the premises is a condition of a fresh connection/enhancement, the dues being a first charge on the company's assets and seller and purchaser jointly and severally liable.

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

SCJ_1567 · Izharul Hauque 2016 **All HC**

C-03 Arrears bar is premises specific 1 case

Petitioner's contention that the leased premises is separate and distinct from the premises against which the lessor's dues are claimed, so the arrears bar cannot attach — framed by the Court as the moot question, left for decision.

SCJ_2211 · M.P. Singh Foundation 2023 **All HC**

C-04 Director not personally liable for company electricity dues 1 case

Director not personally liable for the company's electricity dues absent a personal guarantee; unavailable here as the citation ran against the company through its Director.

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

C-05 Fresh connection to auction purchaser free from encumbrances 1 case

The petitioner, having bought the premises in a public auction free from all encumbrances, contended it could not be denied a fresh connection for the erstwhile owner's dues; the Court granted an interim connection on a bank guarantee but never decided the Clause 4.3 question (dismissed for want of prosecution).

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-06 Interim connection on bank guarantee for disputed arrears 1 case

Interim relief took the form of a fresh connection granted on the petitioner furnishing a bank guarantee for the disputed arrears, expressly subject to the decision of the writ, with future dues to be paid.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-07 Lifting corporate veil to fix arrears liability 1 case

Where a common controlling person uses a web of firms/companies and acquisitions to escape recovery, the veil may be lifted to hold the applicant entity liable for the defaulter's arrears as a condition of supply.

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

C-08 No double recovery of arrears already realized from erstwhile owner 1 case

The Court observed that, the department having sought recovery from the erstwhile owner, it could receive the amount from the purchaser only if it had not already been realized from the erstwhile owner, and required a status report - guarding against double recovery.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-09 Purchaser jointly and severally liable for previous owners dues clause 4.3f 1 case

Under Clause 4.3(f) of the U.P. Electricity Supply Code, 2005 both seller and purchaser are jointly and severally liable for outstanding electricity dues up to the date of sale, with a duty to ascertain the dues / obtain a no-dues certificate; the dues are recoverable from the purchaser though the demand notice is in the erstwhile owner's name.

SCJ_1989 · Madan Mohan Saxena 2018 All HC

D. Insolvency interface — IBC, SICA & sick units 3 principles · 3 case-applications

Clean-slate, section 238 override, moratorium, and relief-undertaking protection.

D-01 Relief undertaking notification stays recovery 1 case

A notification under ss.3-4 of the 1966 Act suspends pre-notification liabilities and stays their enforcement, satisfying the stay condition of Clause 4.49 without any court order.

LEAD AUTHORITIES *Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur*

SCJ_246_S · L.M.L. Ltd. 2009 All HC

D-02 Sica scheme binds participating licensee 1 case

A licensee heard during and consenting to a BIFR-sanctioned scheme (Sections 19(2) and 32(1) SICA) is bound by its demand-charge waiver and cannot invoke its Electricity Act tariff-recovery obligation to escape it.

LEAD AUTHORITIES *M/s Indian Maize and Chemical Ltd. v. State of Uttar Pradesh*

SCJ_1061 · U.P. Power Corporation Ltd. 2019 All HC

D-03 Sick relief undertaking cannot be billed at pre reduction load 1 case

A loss-making unit notified a 'Relief Undertaking' cannot be saddled with billing at the pre-reduction 8 MVA load after production has stopped; the declaration binds the licensee and continued 8 MVA billing was unjust and unfair.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

E. Premises, site, estimates, feeders & lines 4 principles · 4 case-applications

Independent feeders, tapping, change of site, estimates, and landowner objections.

E-01 Clause 3.4d tapping conditions govern both 3.4a and 3.4b 1 case

A conjoint reading of Clause 3.4 shows that sub-clause (d) governs tapping of an independent feeder in both category (a) (Arc/Induction furnaces, rolling/re-rolling/mini steel plants) and category (b) (townships/complexes, domestic, non-domestic, institutional); its conditions are not confined to steel/furnace plants and must be satisfied before any fresh consumer is tapped in.

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 All HC

E-02 Independent feeder original consumer consent 1 case

Tapping of an independent feeder requires the consent of the original consumer(s) who bore its cost. Here the petitioners had objected and never consented, so the direction to connect respondent no.4 to their cold-storage independent feeder was in breach of Clause 3.4(d).

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 All HC

E-03 Landowner objection to line over land remedy before district magistrate 1 case

A landowner objecting to a high-tension line/towers over his private land is relegated to the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006 (read with Clause 4.5(d) of the U.P. Electricity Supply Code, 2005), not to a civil injunction or Article 227 relief.

SCJ_2193 · Sonpal Singh 2018 All HC

E-04 Para 4.29 service line cannot bypass clause 3.4 independent feeder conditions 1 case

'Service line' (Clause 2.2(vv)) and 'independent feeder' are separate concepts; paras 4.29 and 3.4 are harmonised so that para 4.29 cannot be used to supply other consumers through an independent feeder while bypassing the Clause 3.4 conditions, which would otherwise be rendered redundant.

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 All HC

F. Security, load, tariff & regulatory economics 10 principles · 10 case-applications

Additional security, load change, tariff orders, rebates, and Commission-determined charges.

F-01 Additional security default does not bar load factor rebate 1 case

A tariff-order load factor rebate barred only to consumers 'with arrears' cannot be denied for non-furnishing of additional security, since that default is not arrears; such denial is illegal.

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 All HC

F-02 Additional security is not dues clause 4.49 not attracted 1 case

Because additional security is not a due or arrear, the machinery for recovery of arrears is not attracted; the consequence of default is only that the additional load need not be released and the supply may be disconnected.

LEAD AUTHORITIES *Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 All HC

F-03 Load reduction stands approved on licensee decision only ministerial steps left 1 case

Once the licensee's competent authority decides to reduce load on a complete application without pointing out any shortcoming, the reduction stands approved and only ministerial steps remain; the licensee cannot resile by later insisting on requirements not raised at the time.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

F-04 No uperc approval needed for licensee load reduction 1 case

The Code does not require the U.P. Electricity Regulatory Commission's approval of a licensee's decision to reduce load; the reference to the Commission was a redundant exercise that could not defeat rights accrued on the licensee's own decision.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

F-05 Pricing governed by tariff order not supply code 1 case

The manner of charging the price of electricity supply is governed by the Tariff Order and Tariff Schedule under Section 45 of the Electricity Act, 2003; the Supply Code, 2005 prescribes no method of charging the price.

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 All HC

F-06 Protective load additional charges clause 4.27 1 case

The licensee's power to levy protective-load additional charges under Clause 4.27 of the U.P. Electricity Supply Code, 2005 is in issue where the consumer opted for 24-hour supply; the charge is contested as impermissible absent scheduled rostering by the competent authority.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 All HC

F-07 Protective load charges clause 4.27 challenge 1 case

A demand of 'protective load charges' under Clause 4.27 of the U.P. Electricity Supply Code, 2005 was challenged on the ground that the consumer made no application or agreement for protective load; the Department asserted a written application was made. The dispute (a question of fact) was not decided.

SCJ_2190 · Ganga Dairy 2025 All HC

F-08 Security deposit is advance payment not debt 1 case

Additional security demanded for an additional load is an advance payment of charges (estimated for about three months), not money due to the licensee, and so cannot be categorised as arrears.

LEAD AUTHORITIES *Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*; *Ferro Alloys Corporation Ltd. v. A.P. State Electricity Board*

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 All HC

F-09 Tariff interpretation is not a jurisdictional question 1 case

A challenge framed as 'beyond the scope of Section 45' to a demand-charge / 75% billable-demand levy for a disconnection period is really tariff interpretation, not want of jurisdiction; it does not attract the 'wholly without jurisdiction' exception to the alternative-remedy rule. Applied with Whirlpool and Gujarat Ambuja.

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*; *State of H.P. v. Gujarat Ambuja Cement Ltd.*

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

F-10 Tariff no retrospective effect 1 case

A tariff condition (here kVAh billing) operates only from the effective date fixed by the tariff order; the licensee cannot apply it retrospectively to re-bill a consumer for earlier periods.

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 All HC

G. Metering 5 principles · 6 case-applications

Clause 5.6 testing, defective and slow meters, check meters, and meter-reading disputes.

G-01 Interim protection pending meter demand challenge 2 cases

Pending a challenge that a slow/defective-meter demand was raised without following the Supply Code's meter-testing procedure, the Court may stay coercive recovery; such interim relief is not extended where the petitioner does not prosecute the matter.

SCJ_2199 · Om Prakash Sahani 2021 All HC

SCJ_2209 · Surya Trauma Centre and Hospital 2023 All HC

G-02 Connection must be released with a meter 1 case

Releasing an electricity connection without installing a meter is illegal under the Electricity Act, 2003; the proviso to Section 55(1) even allows a consumer to install a purchased meter, so meter-unavailability is no excuse for a meterless release.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 All HC

G-03 Meter dispute must exhaust clause 5.6 before writ 1 case

A consumer disputing a testing meter report (and the provisional bill based on it) on grounds of non-compliance with the Supply Code, 2005 is ordinarily relegated to the departmental remedy rather than having those grounds examined in writ jurisdiction.

SCJ_1980 · Chandrawati Singh 2015 All HC

G-04 Meter holder liable notwithstanding tenant in occupation 1 case

The registered consumer in whose name the meter stands is liable for the charges; Clause 2.2(oo)'s 'Occupier' definition does not shift liability to a tenant in occupation. Cf. the definitional Clause 2.2 applied in SCJ-072.

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

G-05 No meter billing on three months average clause 5.7 1 case

The licensee contended that supply given without a meter attracts clause 5.7, requiring the bill to be raised on three months' average consumption after meter installation — the basis on which the Committee had reported — leaving no room for a further reduction on reduced load; recorded as requiring consideration.

SCJ_2204 · Pashchimanchal Vidyut Vitran Nigam Ltd... 2021 All HC

H. Billing, payment, instalments & limitation 9 principles · 10 case-applications

Clause 6.5 objections, 6.14 instalments, first-due, and the two-year bar (s.56 / Cl. 6.15).

H-01 Billing dispute question of fact executive engineer clause 6.5 2 cases

Disputed questions of fact - whether a connection was permanently disconnected and whether it was of a particular nature or load - are for the Executive Engineer to examine as a billing dispute under Clause 6.5; the writ court relegates rather than decides.

SCJ_2192 · Mahesh Chandra 2018 All HC

SCJ_2191 · Siya Ram 2018 All HC

H-02 Billing objection to executive engineer under 6.5 1 case

The petitioner sought to quash a demand notice of Rs.1,42,998 for electricity dues, disputing the bills raised after a new meter was installed. Holding that a grievance about the bills lay within the objection remedy under clause 6.5 of the U.P..

SCJ_1973 · Raj Kumari @ Rajesh Kumari 2019 All HC

H-03 Clause 6 15b read with section 56 not independent limitation 1 case

Para 6.15(b) of the U.P. Electricity Supply Code, 2005 was held to take colour from Section 56(1) and not to impose a stand-alone two-year limitation, even in a theft case. Same Clause 6.15 cluster as SCJ-113, SCJ-477.

SCJ_1264 · Joginder Singh 2023 All HC

H-04 Installment payment clause 6.14 1 case

Where the only relief sought against a recovery citation for unpaid electricity dues was permission to pay the amount in installments, the Court declined to entertain the writ petition on the ground that the petitioner had an alternative remedy under clause 6.14 of the U.P..

SCJ_1571 · Krishna Gears Pvt. Ltd. 2017 All HC

H-05 Instalment facility clause 6.14 for financial distress 1 case

A consumer in financial distress who does not wish to dispute the dues may seek payment in installments under Clause 6.14 of the Supply Code, 2005.

SCJ_1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 All HC

H-06 Limitation plea preserved before executive engineer 1 case

On relegating a recovery dispute to the Executive Engineer, the consumer is left free to take all pleas, including the plea of limitation, before that authority, and the recovery proceedings are made subject to the outcome of that order.

SCJ_2192 · Mahesh Chandra 2018 All HC

H-07 Own installment offer forecloses quashing of recovery 1 case

The petitioner's own letter dated 5.12.2012 offering to pay the corrected demand in 60 installments left no occasion to quash the recovery; the writ was disposed of relegating the installment modalities to the Executive Engineer.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

H-08 Two year limitation recovery of arrears clause 6.15b 1 case

A recovery of electricity dues enforced after 11 years is challenged as time-barred under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 (no recovery after two years from when the amount becomes due unless continuously shown as recoverable as arrears); the Court found prima facie force but left the plea to the Executive Engineer.

LEAD AUTHORITIES *Satya Narayan v. U.P. Power Corporation Limited*

SCJ_2192 · Mahesh Chandra 2018 All HC

H-09 Two year limitation recovery of electricity arrears 1 case

Recovery initiated in 2010 for a 1997 disconnection was quashed as barred by Clause 6.15(b) of the Supply Code, the Corporation having failed to establish that the dues were continuously shown as recoverable.

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

I. Disconnection, reconnection & restoration 7 principles · 7 case-applications

Permanent disconnection, notice, and restoration on deposit or bank guarantee.

I-01 Direction to consider reconnection subject to clearing dues 1 case

Rather than ordering automatic reconnection, the court directs the competent authority to consider reconnection / fresh connection in accordance with law within a fixed period, conditioned on the consumer clearing all pending dues.

SCJ_1563 · Satya Prakash Singhal 2014 All HC

I-02 Disconnection not for landlord tenant dispute 1 case

The threatened disconnection was traceable not to any electricity default but to the petitioners' private dispute with the seventh respondent (a builder) over the flat, pending in F.A.F.O. No. 380 of 2018; the interim order restrained disconnection premised on that dispute.

SCJ_2202 · Mukesh Kumar Mittal & 3 Others 2019 All HC

I-03 Interim restoration on part payment pending assessment challenge 1 case

Pending a challenge that a re-assessment was not computed per clause 8.2 of the Supply Code, the court restored the disconnected supply on part-payment (Rs.10 lakh) and deposit of current bills, with no coercive action - an interim arrangement leaving the merits open. Same interim-restoration-on-deposit posture as SCJ-1063 and SCJ-206.

SCJ_1564 · Nandu Engineering Works & Anr. 2012 All HC

I-04 Interim restoration on security pending fresh assessment 1 case

Supply was restored on the consumer depositing the amount assessed for one year preceding the inspection (with liberty to pay current bills), pending final decision on the assessment's validity.

SCJ_1063 · Vijay Krishna Agrawal & Anr. 2010 All HC

I-05 Reconnection available after permanent disconnection clause 4.39 1 case

Clause 4.39 of the Supply Code r/w the second proviso to Section 135(1A) EA2003 makes reconnection or fresh connection available even after a permanent disconnection ('PDC final') recorded on theft allegations; the authority is directed to consider the request. Interplay of the Supply Code and the theft provision of the Act. Same Clause 4.39 reconnection route as SCJ-1138 and SCJ-1143.

SCJ_1563 · Satya Prakash Singhal 2014 All HC

I-06 Restoration of connection on furnishing bank guarantee 1 case

The time to furnish the bank guarantee was extended and it was directed that any connection disconnected only for its non-furnishing be forthwith restored on furnishing the guarantee and completing formalities.

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 All HC

I-07 Restoration of writ after non prosecution disposal 1 case

A writ petition consigned to record for non-prosecution off the Warning List, with liberty to seek recall, can be restored and the disposal order recalled on sufficient cause for the non-appearance and the delay.

SCJ_2194 · Gee Cee Cycle Balls Pvt. Ltd. 2017 All HC

J. Unauthorised use (s.126) & assessment 19 principles · 19 case-applications

What is UUE, the 1.5× rate, notice and hearing, provisional and final assessment.

J-01 Clause 6.8 hearing procedure mandatory before uue conclusion 1 case

A provisional assessment notice must state a date and time for hearing as required by Clause 6.8(1)(b); a notice omitting these ingredients denies the mandatory opportunity of hearing and is not in accordance with law.

LEAD AUTHORITIES *Ashok Kumar & Ors. v. State of U.P. & Ors.*

SCJ_1982_S · Ramanuj Tripathi 2014 All HC

J-02 Consumer must be associated in inquiry before final assessment 1 case

A recovery based only on an inspection/checking report, without associating the consumer in the inquiry (provisional assessment and hearing) before final assessment, violates natural justice and the rule of fair play and is arbitrary.

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

J-03 Demand notice on provisional assessment is illegal 1 case

A demand notice recovering the amount assessed under the provisional assessment order is illegal once a final assessment order has been passed, and is quashed. Same Section 126 assessment cluster as SCJ-047 and SCJ-034.

SCJ_1268_S · Rameshwar 2023 All HC

J-04 Deposit for interim restoration abides by fresh section 126 assessment 1 case

A sum deposited as a condition for interim restoration of supply abides by the fresh Section 126 / Para 6.8 assessment; any excess is refunded after adjusting dues and any shortfall is intimated to the consumer.

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

J-05 Final assessment must record satisfaction of service 1 case

A recovery citation is unsustainable where no final assessment order records the authority's satisfaction about service of the provisional assessment notice.

SCJ_2197 · Rishikesh Vishwakarma 2017 All HC

J-06 Final assessment order mandatory under section 126 3 1 case

Section 126(3) contemplates a Final Order of Assessment after a Provisional Assessment; a Provisional Assessment treated as Final without a specific order, on the footing that no objections were filed, is prima facie improper. Same Section 126 cluster as SCJ-047 and SCJ-034.

SCJ_1267 · Abdul Gaffar @ G. Hussian 2017 All HC

J-07 Interim stay of electricity recovery pending final assessment 1 case

Recovery pursuant to an electricity demand notice may be stayed pending the writ where recovery is being pressed without the final assessment mandated by Section 126(3); such a stay is interim and falls away if the petition is ultimately dismissed.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_1985 · Shareef Ahmad 2017 All HC

J-08 Interim stay of final assessment on part deposit 1 case

On a prima facie Clause 8.1(b) challenge to a Final Assessment (no hearing; no finding that theft established) the Court found the matter required consideration and stayed proceedings under the Final Assessment Order subject to a Rs. 1,20,000 part-deposit, the order to vacate automatically on default — the same interim-stay-on-deposit posture as SCJ-1564 and SCJ-206.

SCJ_1974 · Arun Kumar Goel 2016 All HC

J-09 Mandatory personal hearing before final assessment 1 case

Clause 8.1(b)(iii) & (iv) of the U.P. Electricity Supply Code, 2005 makes a personal hearing mandatory before a final assessment order in the Section 126 machinery; a notice merely inviting objection, without a notified date and time for hearing, does not satisfy it.

SCJ_2196 · Ruby Ice Factory 2023 All HC

J-10 No coercive action until final assessment 1 case

As only a provisional assessment had been made, the Court held there was no occasion for coercive action and declined interim protection.

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-11 No objection to provisional assessment validates recovery 1 case

Where the assessee files no objection to a provisional assessment order for unauthorised use, the recovery proceedings are rightly initiated and a writ against the citation fails; the remedy is the Section 127 appeal. Same Section 126/127 cluster as SCJ-1269, SCJ-1266, SCJ-047.

SCJ_1270 · Ram Charan 2015 All HC

J-12 Objection to competence decided by assessing authority 1 case

The objection to the very competence to issue the Section 126(2) notice was directed to be raised before, and decided by, the competent authority in a reasoned order after hearing, rather than by the writ court.

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-13 Para 6.8 non compliance vitiates assessment and recovery 1 case

Non-compliance with the Para 6.8 procedure (provisional assessment, objections, hearing and speaking order) for unauthorised use of electricity vitiates the proceeding and the demand/recovery notice issued pursuant thereto.

LEAD AUTHORITIES *Ashok Kumar & Ors. v. State of U.P. & Ors.*; *Kamil v. State of U.P. & Others*

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

J-14 Premature writ against provisional s.126 assessment 1 case

The Court refused to entertain a writ against a provisional assessment notice under Section 126(2), holding the challenge premature and relegating the consumer to file a detailed objection which the assessing authority could modify, confirm or discharge.

LEAD AUTHORITIES *GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.*

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-15 Proper service of provisional assessment notice clause 6.8 1 case

The department must show that the provisional assessment notice under Clause 6.8 was actually dispatched and served; absent anything on record showing service, the assessment and the consequential recovery fall.

SCJ_1982_S · Ramanuj Tripathi 2014 All HC

J-16 Provisional and final assessment cannot be simultaneous 1 case

After a provisional assessment the authority must give the meter-holder notice to object before a final assessment; a simultaneous provisional-cum-final assessment is treated as merely provisional and reopened. Same 126(3) objection-stage line as SCJ-032, SCJ-898.

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

J-17 Provisional assessment power vests in executive engineer 1 case

Under the Supply Code, 2005 the Executive Engineer holds the provisional-assessment power; an Assistant Engineer (Revenue) calculation sheet issued on the EE's behalf is not the assessment, so a 'wrong officer / bad in law' challenge fails.

SCJ_1566 · Krishna Kumar Sharma 2018 All HC

J-18 S.126 final assessment attaining finality cannot be reopened except fraud 1 case

A final order of assessment under Section 126 that has attained finality cannot be re-opened by the assessing authority, save under inherent authority in cases of fraud or misrepresentation and after affording an opportunity of hearing.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

J-19 S.126 procedural strictness notice and hearing 1 case

The fresh Section 126 assessment dated 15 December 2021 was quashed because it was passed without hearing the consumer or permitting cross-examination of the Department's officers.

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

K. Theft (s.135) & Chapter VIII of the Code 11 principles · 11 case-applications

Civil theft assessment, evidence, acquittal, and the Code's Chapter VIII machinery.

K-01 Authority to assess theft under clause 7.3 1 case

The petitioner's prima facie contention that respondent no.3 was not authorized under Clause 7.3(I) to assess electricity theft warranted interim relief; the authority question was never decided (writ dismissed as not pressed). Same authority-to-assess line as SCJ-859, SCJ-900 and SCJ-1566.

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 All HC

K-02 Code procedure and hearing before theft recovery 1 case

Before recovering theft dues the licensee must follow the Section 126 / Clause 6.8 assessment procedure and afford the consumer a personal hearing; conceded non-compliance leads to quashing of the recovery citation and a remit for a fresh order.

SCJ_2200 · Bhaghu 2023 All HC

K-03 Deemed disconnection does not bar theft assessment in writ 1 case

A deemed-disconnection plea under Clauses 4.36-4.38 does not, in a writ, negate a theft assessment where unauthorised drawing continued after disconnection; the point is for the Section 127 appeal.

SCJ_1269 · Ashok Kumar Ajmera 2012 All HC

K-04 Final assessment requires hearing and finding of theft 1 case

The contentions that Clause 8.1(b) requires an opportunity of being heard and a recorded finding that 'a case of theft has been established' before a Final Assessment were held to 'require consideration' and to warrant interim protection, but were left undecided as the writ became infructuous.

SCJ_1974 · Arun Kumar Goel 2016 All HC

K-05 Interim stay of theft assessment on bank guarantee of half 1 case

Following the leading writ petition, the interim stay of the provisional assessment was made conditional on the consumer furnishing a bank guarantee of half the provisional bill, realisable only after finalisation and only to the extent the final amount exceeded it, with future charges to be paid meanwhile.

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 All HC

K-06 Mandatory hearing before theft assessment 1 case

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 mandatorily warrants an opportunity of hearing before assessment in a theft case; its denial renders the recovery citation liable to be set aside.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ_2197 · Rishikesh Vishwakarma 2017 All HC

K-07 No theft finding subject to special court civil liability s.154 1 case

Even a finding of 'no theft' by the appellate authority remains subject to the Special Court's determination of civil liability for theft under Sections 154(5)-(6) read with Sections 153 and 155; the licensee's revenue interest being thereby protected, the finding is no ground to interfere in writ.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-08 S.126 assessment available for theft unauthorised use covers theft 1 case

'Unauthorised use of electricity' in Explanation (b) to Section 126 is comprehensive enough to cover theft under Section 135; the scheme of the 2003 Act (with the third proviso to Section 135(1A)) contemplates assessment under Section 126 for all categories of unauthorised use, including theft.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-09 S.127 appellate power co extensive competent to decide theft 1 case

As Section 127 prescribes no parameters for deciding the appeal, the appellate authority's power is co-extensive with the assessing authority's and it is competent to decide whether the case is one of theft (para 8.1, Supply Code 2005) or unauthorised use (para 6.8); a reasoned finding is not disturbed in writ merely because a second view is possible.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-10 Section 126 assessment applies to section 135 theft 1 case

A Section 126 assessment must be made even where the conduct constitutes theft under Section 135 and the criminal trial is pending; unauthorised use is the genus and Section 135 theft a species, with the Special Court determining civil liability under Section 154(6).

LEAD AUTHORITIES *Sandeep Kesarwani v. State of U.P.*

SCJ_2198 · Rubi Ice Factory 2017 All HC

K-11 Section 56 2 two year bar inapplicable to theft 1 case

The consumer's plea that recovery beyond two years was barred by Section 56(2) was rejected prima facie: the sub-section addresses default in payment of charges, not theft. Same Section 56(2) cluster as SCJ-001, SCJ-406, SCJ-477.

SCJ_1264 · Joginder Singh 2023 All HC

L. Recovery of assessment, citations & the 1958 Act 9 principles · 9 case-applications

When recovery may issue, stay pending appeal, tehsil citations, and collection charges.

L-01 Collection charges only on tehsil recovery not direct deposit 1 case

Collection / recovery charges are leviable only where the dues are actually recovered by the Tehsil (revenue) authorities; where the consumer deposits the dues directly with the Electricity Department, no collection charges arise.

SCJ_707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 All HC

L-02 Collection charges waived on timely payment under instalment order 1 case

A writ order granting instalments under Clause 6.14 and waiving collection charges on timely full payment bars recovery of collection charges once the dues are fully paid and the demand notice recalled; recovery thereafter, with arrest and without notice, is mala fide and contumacious.

SCJ_707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 All HC

L-03 Final s.126 assessment mandatory precondition to recovery citation 1 case

A recovery citation for electricity dues cannot issue on a provisional assessment; a final assessment order under Section 126(3) - recording service and made by a reasoned order even where no objection is filed - is a mandatory precondition to recovery.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_1982_S · Ramanuj Tripathi 2014 All HC

L-04 No recovery certificate without final section 126 3 assessment 1 case

No recovery certificate for electricity dues is to be issued until a final assessment is made in a theft case under sub-section (3) of Section 126 of the Electricity Act, 2003 after a reasonable opportunity of hearing; recoveries issued without a final assessment are to be withdrawn - applied here to stay recovery on the impugned demand notice at the interim stage.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_1985 · Shareef Ahmad 2017 All HC

L-05 Recovery citation abides billing determination 1 case

A recovery citation under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 for disputed electricity dues is not permitted to proceed until the Executive Engineer determines the billing dispute, and then only if dues are found recoverable in accordance with law.

SCJ_2191 · Siya Ram 2018 All HC

L-06 Recovery citation kept in abeyance pending fresh objection 1 case

On reopening the assessment for objection, the recovery citation was kept in abeyance for two months or till the authority's final decision, which the citation is to abide.

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

L-07 Recovery citation quashed and remitted for fresh order 1 case

A recovery citation issued without the prescribed Supply Code procedure is quashed, leaving it open to the licensee to pass a fresh order after following the procedure and hearing the consumer's objections.

SCJ_2200 · Bhaghu 2023 All HC

L-08 Recovery demand notice is consequential not independently challengeable 1 case

A Section 3 recovery demand notice that merely calls for payment of electricity dues on unchallenged regular bills is a consequential action, not an independently challengeable order; absent a challenge to a regular bill there is no provision under which it can be assailed in writ.

SCJ_1984 · Imran Ahmad 2018 All HC

L-09 Recovery must rest on final assessment order 1 case

Recovery under Section 126 must be founded on the final assessment order, not the provisional assessment; quashing the demand notice leaves the assessee at liberty to challenge the final assessment order separately. Companion to the provisional/final-order point in SCJ-1267.

SCJ_1268_S · Rameshwar 2023 All HC

M. Fora — CGRF, Ombudsman, Inspector & Lok Adalat 8 principles · 11 case-applications

Who may decide what: consumer fora, ombudsman limits, Electrical Inspector, PLA.

M-01 Cgrf jurisdiction covers billing and tariff disputes 2 cases

The CGRF under Section 42(5) EA2003 and the UPERC 2007 Regulations can decide a consumer's excess / wrong-billing and tariff-interpretation grievance; the restrictive 'grievance' definition in Reg. 2(n) does not oust it because 'complaint' in Reg. 2(e) is wide. Cf. the CGRF / Ombudsman-jurisdiction line in SCJ-256 and SCJ-049.

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 **All HC**

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 **All HC**

M-02 Clause 7.10 forum ombudsman route for billing grievances 2 cases

The consumer's billing/recovery grievance lies before the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 (read with 7.7.1 and 7.7.5) of the Supply Code, 2005, with the licensee bound to settle within the Code's time limit.

SCJ_1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 **All HC**

SCJ_2204 · Pashchimanchal Vidyut Vitran Nigam Ltd... 2021 **All HC**

M-03 Consumer grievance redressal forum remedy clause 7.10 2 cases

If still aggrieved after the Executive Engineer's determination, the consumer may approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

SCJ_2191 · Siya Ram 2018 **All HC**

SCJ_2208 · Kothiwal Dental College and Research C... 2023 **All HC**

M-04 Bill correctness under clause 6.5 not cgrf or ombudsman 1 case

Prima facie, the correctness of a consumption / supplementary bill is challengeable only under clause 6.5 of the Supply Code; the CGRF and the Electricity Ombudsman lack competence over bill-correctness (Anis Ahmad). Same Anis Ahmad line as SCJ-1561; cf. SCJ-049 and SCJ-256 on the limits of CGRF / Ombudsman competence.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Anis Ahmad*

SCJ_1565 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2023 **All HC**

M-05 Cgrf adequacy requires judicial member 1 case

Objection that the CGRF lacks a judicial member is met by proof on affidavit that the Forum is functional and chaired by a retired judicial officer; a website printout showing vacancies does not displace the sworn stand.

SCJ_2208 · Kothiwal Dental College and Research C... 2023 **All HC**

M-06 Interim protection to licensee pending challenge to forum order 1 case

Coercive action against the licensee restrained pending its writ challenging a Consumer Grievance Redressal Forum/Ombudsman order allowing a consumer's complaint.

SCJ_2210 · Madhyanchal Vidyut Vitran Nigam Ltd. 2022 **All HC**

M-07 Interim stay of forum direction to reassess on reduced load 1 case

The second part of the Forum's order, directing reassessment of the remaining period on reduced load, was stayed pending final hearing at the licensee's instance, while the part implementing the Committee's report was left to operate.

SCJ_2204 · Pashchimanchal Vidyut Vitran Nigam Ltd... 2021 **All HC**

M-08 Ombudsman cannot direct contrary to act and code 1 case

Prima facie (undecided) contention that the Forum/Ombudsman allowed a time-barred complaint and decided it under section 56(2)/para 6.15B contrary to the Act and the Code; matter found to require consideration.

SCJ_2210 · Madhyanchal Vidyut Vitran Nigam Ltd. 2022 **All HC**

N. Appeals (s.127) & statutory remedies 4 principles · 4 case-applications

The section 127 appeal, independent judgment, pre-deposit, and the vested right of appeal.

N-01 No final order defeats section 127 appeal 1 case

Where no Final Assessment Order under Section 126 is passed, the assessee is prima facie deprived of the Section 127 appeal, warranting interim protection against recovery. Related to the Section 127 remedy considered in SCJ-1266.

SCJ_1267 · Abdul Gaffar @ G. Hussian 2017 **All HC**

N-02 Relegation to section 127 appeal on merits limitation not examined 1 case

On relegating a belated assessee to the Section 127 appeal, the writ court may fix a time to appeal and direct the appellate authority to decide on merits without going into limitation, neutralising the delay.

SCJ_1270 · Ram Charan 2015 **All HC**

N-03 S.127 appeal lies only against final order not provisional assessment 1 case

An appeal under Section 127 is maintainable only against a final order under Section 126; a provisional assessment (even a revised one issued during the appeal, on which no final order is passed) is not appealable, requires no amendment of the memo of appeal, and does not render the pending appeal infructuous.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 **All HC**

N-04 Section 127 6 interest 16 percent compounded semiannually 1 case

Section 127(6) provides interest at 16% per annum compounded every six months on the assessed amount; interest is a necessary corollary to retention of the amount, neither penal nor confiscatory (Wig Brothers).

LEAD AUTHORITIES *Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.*

SCJ_1266_S · Hind Industries Limited 2013 **All HC**

O. Writ, alternative remedy & public-law doctrines 22 principles · 27 case-applications

Article 226, Whirlpool exceptions, relegation, laches, clean hands, and costs.

O-01 Alternative remedy relegation 3 cases

A writ against recovery of electricity dues is not entertained where the consumer has a statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005; the petitioner is relegated to that forum and the writ dismissed.

SCJ_1984 · Imran Ahmad 2018 **All HC**

SCJ_1980 · Chandrawati Singh 2015 **All HC**

SCJ_2208 · Kothiwal Dental College and Research C... 2023 **All HC**

O-02 Want of prosecution dismissal vacates interim stay 2 cases

On 2.8.2024 the writ was dismissed as infructuous for want of prosecution and the interim order stood vacated; the same posture as SCJ-1565, though here the dismissal was subsequently recalled and the interim protection revived on restoration.

SCJ_1975 · Sisco Industries Ltd. 2012 All HC

SCJ_1565 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2023 All HC

O-03 Writ dismissed as infructuous with liberty to move afresh 2 cases

Although the deposit was made and the petitioner asserted the writ had not become infructuous, the Registry's 'likely to be infructuous' classification drew no objection and the petition was dismissed as infructuous with liberty to move the Court afresh if the cause of action survives — no merits decision.

SCJ_1975 · Sisco Industries Ltd. 2012 All HC

SCJ_1974 · Arun Kumar Goel 2016 All HC

O-04 Writ petition dismissed for want of prosecution on non appearance 2 cases

A writ petition is dismissed for want of prosecution where, on the matter being called, no one appears to press it - the merits, including any electricity-dues challenge, going unadjudicated.

SCJ_1972 · Nishant Yadav 2023 All HC

SCJ_1986 · Vishun Kumar Agrawal & Anr. 2023 All HC

O-05 Alternate remedy and laches bar writ 1 case

Availability of a statutory appeal to the AAIFR under Section 25 SICA and a four-to-five-year delay were each a sufficient ground to decline writ jurisdiction.

SCJ_1061 · U.P. Power Corporation Ltd. 2019 All HC

O-06 Alternate remedy section 127 appeal bars writ 1 case

A theft-assessment challenge is relegated to the statutory appeal under Section 127 and the Area Level Committee; a writ kept pending for nine years without using that remedy is an abuse of process. Same Section 127 cluster as SCJ-069, SCJ-163.

SCJ_1266_S · Hind Industries Limited 2013 All HC

O-07 Alternative remedy efficacious absent onerous predeposit 1 case

The onerous-deposit / limitation exceptions (J.M. Baxi, Shantilal & Co.) do not apply where the statutory forum requires no deposit of the whole demand (only 50% for interim relief) and the demand is not time-barred; the consumer is relegated to the forum. Same relegation-of-a-billing-dispute line as SCJ-636 and SCJ-1561.

LEAD AUTHORITIES *J.M. Baxi & Co. v. Commissioner of Customs, New Kandla*

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

O-08 Alternative remedy relegation section 127 1 case

A writ against a Section 126 assessment is not entertained where the Section 127 appeal is available; the onerous 50% pre-deposit does not make the statutory remedy inadequate.

SCJ_2195 · Jag Dev Prasad 2017 All HC

O-09 Alternative remedy section 127 appeal 1 case

A writ against a final Section 126(3) assessment is not entertained where a Section 127 statutory appeal is available; the High Court normally declines to interfere under Article 226.

LEAD AUTHORITIES *Executive Engineer, SOUTHCO v. Sri Seetaram Rice Mill*

SCJ_2198 · Rubi Ice Factory 2017 All HC

O-10 Article 226 duty of full disclosure 1 case

A petitioner under Article 226 must disclose adverse material within his knowledge and cannot withhold it while pleading non-service; non-disclosure weighs against discretionary relief.

SCJ_2195 · Jag Dev Prasad 2017 All HC

O-11 Clause 6.15 two year limitation relegated to authority 1 case

On review, by consent, the petitioner was given liberty to make a representation to respondent no.1 raising only the Clause 6.15 plea that arrears older than two years cannot be recovered; the writ court did not itself decide the limitation question.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

O-12 Contempt compliance with a direction to dispose of a new connection appl 1 case

A civil contempt application alleging non-compliance with a writ order directing the electricity authority to dispose of the applicant's new-connection application after hearing an objector was dismissed on a finding of compliance..

SCJ_1570 · Tulsi Castle 2023 All HC

O-13 Contempt of 6.5 writ does not redecide bill 1 case

A civil contempt application alleging that the Executive Engineer had failed to consider the applicant's billing objection within the period stipulated by the U.P. Electricity Supply Code, 2005 was disposed of on the filing of a compliance affidavit and the fixing of a date for consideration..

SCJ_1569 · Yogesh Kumar Jain 2017 All HC

O-14 Disputed questions of fact not adjudicable under article 226 1 case

A serious factual dispute over the electricity bill and recovery (whether billing could continue after the permanent-disconnection application; whether the bank took possession; the effect of the temporary disconnection and the auction) is not adjudicated in writ; the statutory forums must answer it.

SCJ_1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 All HC

O-15 Disputed surcharge impounded in interest bearing account pending writ 1 case

Pending decision, disputed protective-load surcharge is kept by the licensee in a separate interest-bearing account to abide by the result of the writ petition.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 All HC

O-16 Final assessment order relegates assessee to section 127 appeal 1 case

Once a theft case is registered and a final assessment order passed, the writ challenging the assessment is dismissed and the assessee relegated to the Section 127 appeal with all grounds open. Same Section 127 cluster as SCJ-1266, SCJ-047.

SCJ_1269 · Ashok Kumar Ajmera 2012 All HC

O-17 Long pending writ consigned to record no cause of action survives 1 case

A years-old writ on the 'Oldest Pending Cases in this High Court for Priority Hearing' warning list, with none appearing for the petitioner on a revised call and no surviving cause of action on the record, is consigned to record and disposed of, with liberty to seek recall/variation/modification.

SCJ_2190 · Ganga Dairy 2025 All HC

O-18 No relief to litigant without clean hands 1 case

A petitioner who withholds material facts and obtains an interim order by painting a false picture is not entitled to discretionary relief.

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

O-19 No writ at calculation sheet stage raise objection before ee 1 case

A writ at the proposed-assessment / calculation-sheet stage is not entertained; the consumer is relegated to file objection before the Executive Engineer, the calculation sheet being only a call for his response. Same objection-stage / relegation line as SCJ-1270, SCJ-1271, SCJ-032.

SCJ_1566 · Krishna Kumar Sharma 2018 All HC

O-20 Writ dismissed for want of prosecution interim vacated 1 case

After being listed and adjourned repeatedly from 2022 to 2026, the writ was dismissed for want of prosecution when no one appeared to press it, and any interim protection stood vacated — no merits decision being rendered.

SCJ_2207 · Kanhaiya Beverages Pvt. Ltd. & Another 2026 All HC

O-21 Writ dismissed in default and for want of prosecution 1 case

A writ petition is dismissed in default and for want of prosecution where, a counter affidavit having long been on record, no rejoinder is filed and no one appears to press the petition; any interim order stands discharged.

SCJ_1989 · Madan Mohan Saxena 2018 All HC

O-22 Writ interference declined no case made out and infructuous 1 case

A writ court declines to interfere with an electricity demand notice, and dismisses the petition vacating any interim order, where on a perusal of the pleadings no case for interference is made out and the cause of action no longer survives / the matter has become infructuous.

SCJ_1985 · Shareef Ahmad 2017 All HC

P. Criminal process, compounding & s.482 2 principles · 2 case-applications

Arrest safeguards, FIR, compounding, summoning, and inherent-power quashing.

P-01 Criminal acquittal does not extinguish electricity assessment 1 case

Acquittal in the criminal theft case does not make the assessment order not survive; acquittal may rest on grounds unrelated to the assessment, and the assessment of charges on account of theft is provided under the Act.

SCJ_1266_S · Hind Industries Limited 2013 All HC

P-02 New connection released on undertaking dues as first charge 1 case

Pending decision, the new connection is released on the applicant's undertaking that the prior consumer's disputed dues be a first charge on the property, without prejudice to the licensee.

SCJ_2211 · M.P. Singh Foundation 2023 All HC

Q. Adjacent & miscellaneous 27 principles · 30 case-applications

Doctrines that sit beside the Code: arbitration, departmental inquiry, and residual.

Q-01 Assessment order quashed and remitted for hearing 2 cases

A final assessment order made in breach of the Clause 8.1(b) hearing requirement is quashed and the matter remitted for a hearing, with liberty to the licensee to pass a fresh order in accordance with law if the consumer defaults in appearing.

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

SCJ_2196 · Ruby Ice Factory 2023 All HC

Q-02 Interim protection preserving pre existing uninterrupted supply 2 cases

On a prima facie challenge to a Clause 4.27 registration/100% base-demand-charge demand, the Court stayed the licensee's communication and directed that the industrial consumer continue to receive the uninterrupted supply at scheduled rates it had enjoyed under the 2004 Industrial Policy since 2004 - an interim arrangement leaving the merits open.

SCJ_1975 · Sisco Industries Ltd. 2012 All HC

SCJ_2202 · Mukesh Kumar Mittal & 3 Others 2019 All HC

Q-03 Part deposit stay of recovery without prejudice 2 cases

Recovery under the citation was stayed on a part-deposit (Rs.35,000 against Rs.75,220) without prejudice to the parties' rights; the interim indulgence did not entitle the petitioner to a merits adjudication in the writ.

SCJ_1270 · Ram Charan 2015 All HC

SCJ_2209 · Surya Trauma Centre and Hospital 2023 All HC

Q-04 Amendment allowed does not mean prayer allowed 1 case

Allowing the amendment application that introduced the Clause 6.15 limitation ground did not amount to allowing the prayer; the limitation merits were left to be raised before the authority.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

Q-05 Compensation for accidents caused by a licensee s negligence 1 case

A writ petition contending that no statutory provision exists in Uttar Pradesh for payment of compensation where injury or death is caused by the negligent act of a licensee under the Electricity Act, 2003 read with the U.P..

SCJ_1568 · Parmeshwar Prasad 2016 All HC

Q-06 Conditional interim stay deposit of three months amount 1 case

Recovery under a disputed assessment bill and disconnection stayed on condition of depositing the amount calculated for the last three months from the date the dispute arose and continuing to pay current bills.

SCJ_2194 · Gee Cee Cycle Balls Pvt. Ltd. 2017 All HC

Q-07 Cost on electricity department for casual non compliance 1 case

Rs.2,00,000 cost was imposed on the Electricity Department, deprecating its 'callous, indifferent and casual attitude' in not filing a counter affidavit despite a peremptory order, the amount remitted to the Advocate Association for lawyer welfare and the Executive Engineer directed to appear in person.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

Q-08 Cost on frivolous state instrumentality litigation 1 case

A State instrumentality challenging a modest consumer-protection award for its own default, without any error apparent on the record, prosecutes frivolous and vexatious litigation liable to be dismissed with cost; departmental action against the defaulting officials is the proper course.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 All HC

Q-09 Damages for licensee delay under para 7 7 2 1 case

Concurrent DCGRF and Electricity Ombudsman findings of delay and laches justify damages under paragraph 7.7.2 of the Supply Code, 2005; Article 226 interference is refused absent an error apparent on the record. Same paragraph 7.7 cluster as SCJ-261 and SCJ-700.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 All HC

Q-10 Electricity dues contractual not charge on premises 1 case

A defaulting consumer could not shift its liability to the auction-purchaser via a sale deed it was not party to; dues are enforced under the supply contract and a transferee cannot be foisted with a predecessor's dues absent a contract to the contrary.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

Q-11 Exorbitant assessment makes appeal remedy onerous 1 case

The plea that an exorbitant re-assessment renders the statutory appeal onerous (50% pre-deposit) was held to need consideration; the writ was entertained and not thrown out at the interim stage on the alternative-remedy ground, though the respondents contended that an appeal lies.

SCJ_1564 · Nandu Engineering Works & Anr. 2012 All HC

Q-12 High court non bailable warrant must be executed 1 case

A High Court non-bailable warrant must be executed; a Chief Judicial Magistrate cannot act on the assurance of the person named and return it unexecuted.

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

Q-13 Interest cannot inflate frozen balance during complied interim order 1 case

Where an interim order operated in the consumer's favour and its conditions were complied with, a 16% interest demand under Clause 8.1(c)(ii) cannot swell the balance fixed at the dismissal of the earlier writ; the inflated demand is unjustified.

SCJ_2212 · Narendra Kumar Gupta 2024 All HC

Q-14 Law as of application date governs 1 case

A load-reduction application is governed by the Code as it stood when the application was made (here the unamended Clause 4.49 accepting a bond or any instrument), not by a later amendment introducing a bank-guarantee-only requirement; 'instrument' is wide enough to include an affidavit.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

Q-15 No article 227 interference with concurrent injunction refusals 1 case

Where the trial and appellate courts have concurrently refused a temporary injunction on a proper appreciation of prima facie case, balance of convenience and irreparable injury, and a statutory remedy exists, the High Court will not interfere under Article 227.

SCJ_2193 · Sonpal Singh 2018 All HC

Q-16 No refusal of connection for other portion dues 1 case

Clause 4.3(h) bars a licensee from refusing a new connection to a sub-divided premises for unpaid dues on other portions; only the pro-rata share attributed to that sub-divided premises may be demanded.

SCJ_2201_S · Torrent Power Ltd. 2019 All HC

Q-17 Officer accountability for defying repeated judicial directions 1 case

The Executive Engineer who reiterated a set-aside assessment order in defiance of the repeated directions of the appellate authority and the writ court was required to file a personal affidavit and show cause; he tendered an unconditional apology, which was recorded.

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

Q-18 One time settlement finality 1 case

Writ disposed of by consent on a fixed sum (Rs. 1,00,000) in full and final satisfaction of the claim, upon deposit of which the entire proceedings stand dropped.

SCJ_2212 · Narendra Kumar Gupta 2024 All HC

Q-19 Owner lessor liable for electricity dues despite third party operation 1 case

The liability for dues under the demand notice and citation was fixed on the owner/lessor in whose name the connection stood, notwithstanding termination of the dealership and Hindustan Petroleum's running of the outlet.

SCJ_1269 · Ashok Kumar Ajmera 2012 All HC

Q-20 Premises excludes appurtenant open land 1 case

For arrears / new-connection purposes, 'premises' (Code Clause 2.2(ss), read with the inclusive Section 2(51) of the Act and Section 50) does not extend to open land appurtenant to the house in which the earlier connection was installed.

SCJ_2201_S · Torrent Power Ltd. 2019 All HC

Q-21 Prima facie scrutiny interim protection on disputed assessment 1 case

A billing dispute resting on genuinely competing Supply-Code clause readings may be held prima facie to require scrutiny and met with interim protection and a direction for pleadings, rather than decided at the threshold.

SCJ_2194 · Gee Cee Cycle Balls Pvt. Ltd. 2017 All HC

Q-22 Pro rata rule needs composite premises 1 case

The pro-rata sub-division rule applies to a composite premises with an existing connection; open vacant land with no connection bears no arrears, distinguishing Paschimanchal v. DVS Steels.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ_2201_S · Torrent Power Ltd. 2019 All HC

Q-23 Remit for fresh reasoned assessment 1 case

On quashing a theft recovery for procedural default the licensee is relegated to a fresh provisional assessment, service, consideration of objections, and a reasoned final assessment in the light of Ashok Kumar.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ_2197 · Rishikesh Vishwakarma 2017 All HC

Q-24 Scheduled rostering competence regulatory commission vs load dispatch centre 1 case

The petitioner contends that the power to provide protective-load facility and to schedule rostering vests solely in the Electricity Regulatory Commission and cannot be exercised by the Load Dispatch Centre under Section 31 of the Electricity Act, 2003, and that 'optimum scheduling' does not amount to 'scheduled rostering' under Section 32.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 All HC

Q-25 Service versus knowledge of assessment notice 1 case

The distinction between actual 'service' of the provisional/final assessment notice and the assessee's mere 'knowledge' of the proceedings is a factual question for the assessing authority; mere knowledge is not necessarily compliance with the prescribed procedure.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ_2195 · Jag Dev Prasad 2017 All HC

Q-26 Set aside assessment is non est fresh reasoned order required 1 case

The assessing authority impermissibly reiterated the final assessment order already set aside by the appellate authority; a set-aside assessment cannot be revived and a fresh order following the appellate directions and the Supply Code procedure is required.

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

Q-27 Transmission line cannot be stopped for want of compensation 1 case

Construction of transmission power service lines cannot be stopped for want of payment of compensation; the remedy is a direction to the competent authority to determine and pay compensation to the tenure holders over whose land the towers are erected.

SCJ_2193 · Sonpal Singh 2018 All HC

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